11 — Non-disclosure agreement

Français (version de référence) : ../fr/11-accord-confidentialite.md

> **TEMPLATE — TO VALIDATE.** Mutual agreement, for exchanges with partners, contractors, investors or pilots before a contract.

Header	
Jurisdiction	DRC; OHADA law of obligations
Assumptions	H-01, H-10
Sources	—
Clauses to validate	V-02; duration; remedies
Version	[NUMBER] of [DATE]

Between [PARTY A — full identification] and [PARTY B — full identification].

1. Purpose

The parties exchange information in connection with [PURPOSE: evaluating a partnership, a pilot, a service]. This agreement protects that information.

2. Confidential information

Any non-public information disclosed by a party, in any form: technical (code, architecture, security), commercial (prices, customers, plans), financial, personal data. Not confidential: information already public through no fault of the recipient; already known to it; lawfully received from a third party; independently developed.

3. Commitments

The recipient: uses the information only for the purpose; discloses it only to people who need it and are bound by the same secrecy; protects it at least as well as its own information; warns the other party of any unauthorised disclosure; returns or destroys the information on request. Disclosure required by law or an authority is allowed after informing the other party where the law permits.

4. No licence

No intellectual property right is granted. No obligation to enter into a contract arises from this agreement.

5. Duration

Agreement valid for [2] years from signature; confidentiality obligations continue for [3] years after its end ([without limit] for security secrets and source code).

6. Governing law

Law of the DRC; [Kinshasa/Gombe commercial court] **[TO VALIDATE: V-02]**.

Made in [CITY], on [DATE].

Party A	Party B
[NAME, TITLE]	[NAME, TITLE]